

Thilagavathy vs / on 19 December, 2016

Author: G.Jayachandran

Bench: G.Jayachandran

IN THE HIGH COURT OF JUDICATURE AT MADRAS

Reserved on : 08.12.2016
Pronounced on : 19.12.2016

CORAM

THE HON'BLE DR. JUSTICE G.JAYACHANDRAN

Second Appeal No.965 of 1996

1.Thilagavathy
2.M.Mahalakshmi

.. Appellants

/vs/

1.Kuppammal @ Mahamaimary(died)
2.The Branch Manager,
State Bank of Tiruvancore at
Basent Nagar, Madras.
3.Raja
4.Stella Nagalingam
(RR3 to 5 are brought on record as
legal representatives of the deceased
1st respondent vide order of Court
dated 3.2.2007 made in C.M.P.No.359
to 361 of 2007)

.. Respondents

Second Appeal filed under Section 100 of the Civil Procedure Code against the Judgment

For Appellants
For Respondents

:Mr.D.Palani
:Mr.T.V.Sekar for R2

JUDGMENT

This appeal is directed against the judgment of the lower Appellate Court reversing the judgment of the trial Court.

2. The brief facts leading to the Second Appeal are as follows:-

One Mariaselvam, who was employed as Attender in State Bank of Tiruvancore,

Besant Nagar Branch, Chennai died on 26.08.1991. The plaintiffs claiming as wife and daughter sought for terminal benefits of deceased Mariaselvam. The first defendant Kuppammal @ Mahumaimary as mother of the deceased made a rival claim. In view of the rival claim, the 2nd defendant Bank has directed the parties to get Court order. Hence, the plaintiffs have filed the suit for declaration that they alone are the legal heirs of the deceased Mariaselvam and entitled to the death benefit of Maiaselvam and to restrain the 2nd defendant Bank from disbursing the retirement benefit to the first defendant.

3. The trial Court has declared both the plaintiffs and the first defendant are legal heirs of the deceased Mariaselvam and further, declared that the plaintiffs together are entitled to = share and the first defendant is entitled to = share in the death benefits of Mariaselvam. Further, the trial Court has directed the second defendant to give employment to the first plaintiff, if there is any chance for it.

4. Against the judgment of the trial Court, the first defendant preferred the appeal on the ground that the trial Court erred in declaring the plaintiffs as legal heirs of deceased Mariaselvam, when there was no proof of marriage and there is discrepancy in the date of alleged marriage and also the first appellate Court has granted relief even without pleadings.

5. Aggrieved by the lower Appellate Court's judgment, the appellants have preferred the second appeal. At the time of admission, this Court has formulated the following Substantial Questions of Law for consideration:

(1) Is the lower appellate Court correct and justified in holding that the birth extract and the voters list will not prove the marriage?

(2) Will not the entries in the voters list as to the status of the party and the entries in the Birth Register prove the factum of marriage, especially when it is not disposed by either of the spouses?

6. The learned counsel appearing for the appellants submitted that when man and woman are living under same roof and co-habiting for number of years, then, law presumes in favour of marriage. Any child born through such marriage cannot be termed as illegitimate child.

7. In support of his submission, he relied on a Judgment of the Hon'ble Apex Court in Madan Mohan Singh and others v. Rajni Kant and another reported in 2010 (5) CTC 503, wherein paras 13 to 15 read as follows:

3. In State of Bihar & Ors. v. Radha Krishna Singh & Ors., AIR 1983 SC 684, this Court dealt with a similar contention and held as under:

Admissibility of a document is one thing and its probative value quite another-these two aspects cannot be combined. A document may be admissible and yet may not

carry any conviction and weight of its probative value may be nil.... Where a report is given by a responsible officer, which is based on evidence of witnesses and documents and has a statutory flavour in that it is given not merely by an administrative officer but under the authority of a Statute, its probative value would indeed be very high so as to be entitled to great weight. The probative value of documents which, however ancient they may be, do not disclose sources of their information or have not achieved sufficient notoriety is precious little .

14. Therefore, a document may be admissible, but as to whether the entry contained therein has any probative value may still be required to be examined in the facts and circumstances of a particular case. The aforesaid legal proposition stands fortified by the judgments of this Court in *Ram Prasad Sharma v. State of Bihar*, AIR 1970 SC 326; *Ram Murti v. State of Haryana*, AIR 1970 SC 1029; *Dayaram & Ors. V. Dawalatshah & Anr.*, AIR 1971 SC 681; *Harpal singh & Anr. v. State of Himachal Pradesh*, AIR 1981 SC 361; *Ravinder Singh Gorkhi v. State of U.P.*, 2006 (5) SCC 584; *Babloo Pasi v. State of Jharkhand & Anr.*, 2008 (13) SCC 133; *Desh Raj v. Bodh Raj*, AIR 2008 SC 632; and *Ram Suresh Singh v. Pravgat Singh @ Chhotu Singh & Anr.*, 2009 (6) SCC 681. In these cases, it has been held that even if the entry was made in an official record by the concerned official in the discharge of his official duty, it may have weight but still may require corroboration by the person on whose information the entry has been made and as to whether the entry so made has been exhibited and proved. The standard of proof required herein is the same as in other Civil and Criminal cases.

15. Such entries may be in any public document, i.e. School Register, Voter List or Family Register prepared under the Rules and Regulations, etc., in force, and may be admissible under Section 35 of the Evidence Act as held in *Mohd. Ikram Hussain v. The State of U.P. & Ors.*, AIR 1964 SC 1625; and *Santenu Mitra v. State of West Bengal*, AIR 1999 SC 1587.

8. The question before this Court is in respect of the probative value of Ex.A1-Birth Register Certificate, Ex.A6-Family Card and Ex.A7-Voter slip. In the judgement relied upon by the learned counsel appearing for the appellants, the Hon'ble Apex Court has given a key for this question.

9. On perusal of Ex.A8-the Order copy of the Family Court in H.M.O.P.No.394 of 1989, this Court finds that the first plaintiff did not live with Mariaselvam due to some misunderstanding between them and the petition filed by the first plaintiff for restitution of conjugal rights was dismissed, because Mariaselvam denied the marriage itself. Since he admitted that the 2nd plaintiff was born during his short acquaintance with the first plaintiff, the Family Court has awarded maintenance to the 2nd plaintiff treating her as illegitimate child.

10. The lower Appellate Court has rightly pointed out that there is discrepancy regarding the alleged date of marriage. In the plaint and chief examination, the marriage date is mentioned as 26.10.1986. In the absence of evidence to prove the solemnization of marriage, the claim of valid marriage

between the first plaintiff and Mariaselvam fails. Secondary way of establishing marriage through long co-habitation as husband and wife also does not stand the test of law, since the alleged period of joint living appears to be very short. The 2nd defendant was born on 16.09.1986. The petition for restitution of conjugal right alleging willful withdrawal from matrimonial life is filed in the year 1989, 3 years from birth of the 2nd plaintiff. Except one Rajammal P.W.2, no witness was examined to prove the birth certificate, voter slip and legal heir certificate. Even P.W.2, who was asked to speak about the marriage and co-habitation was not able to depose the right facts so as to inspire the confidence of the Court about its genuineness.

11. Exs.A9 and B7 are the two legal heirs certificates issued by same Tahsildar showing 2 sets of legal heirs. He was not examined to show, which one is correct and why two different legal heir certificates came into existence. The probative value of the birth certificate Ex.A1 without examination of the custodian of the original records is very weak.

12. Further, the admitted fact and also established through evidence is that Mariaselvam is a Christian and the plaintiffs are Hindus. There is no analogous provision of law in Indian Succession Act, 1925 similar to Section 16 of the Hindu Marriage Act, 1955 which entitles an illegitimate child to inherit her father or mother property.

13. The learned counsel appearing for the appellants submitted that in Section 2(b) of the Hindu Succession Act, 1956 and the explanation thereunder makes clear that the Hindu Succession Act, 1956 will apply to a child, whether legitimate or illegitimate. If one of its parent is Hindu, such child is brought up as Hindu.

14. Explanation (b) to Section 2(1) of Hindu Marriage Act, 1955 and the Hindu Succession Act, 1956 are identical one and it reads as under:

Any child, legitimate or illegitimate, one of whose parents is a Hindu, Buddhist, Jaina or Sikh by religion and who is brought up as a member of the tribe, community, group or family to which such parent belongs or belonged

15. No doubt, that is the correct proposition of law. The second plaintiff Mahalakshmi is born to Hindu Mother and brought up as Hindu. Neither of the party disputes it. The point is whether that will confer the second plaintiff any right of inheritance, the privilege and protection given to illegitimate children under Section 16(2) of the Hindu Marriage Act, 1955.

16. The Section 16(2) of the Hindu Marriage Act, 1955 gives protection to the a child born to Hindus, if their marriage held to be void due to Section 5 of the Hindu Marriage Act, 1955.

17. Under Section 11 of the Hindu Marriage Act, 1955-any marriage solemnized after the commencement of this Act shall be null and void and may, on petition presented by either party thereto, (against the other party) be so declared by a decree of nullity, if it contravenes any one of the conditions specified in clauses (i), (iv) and (v) of Section 5 of the Hindu Marriage Act, 1955. So, the pre-requisite to take protection under Section 16(2) of the Hindu Marriage Act, 1955 to get share

of the intestate, the marriage must have been solemnized between any two Hindus, but rendered void in view of Section 5, Clause (i)(iv) and (v). In this case, the first plaintiff is Hindu and the intestate Mariaselvam was Christian. So, this provision is not applicable to the facts of this case.

18. In the present case, the factum of solmnisation of marriage is not proved. Even long co-habitation is also not established. So, the claim of the first plaintiff that she is the legally wedded wife of Mariaselvam is not established. The right of the 2nd plaintiff as the child of Mariaselvam also could not be established since the birth certificate, voter slips, family card are not proved in the manner established in law.

19. When one set of family card and legal heirs certificates are in the name and favour of the plaintiff, the another set is in the name and favour of the defendant, this makes the claim of the plaintiff doubtful. The genuinness of it could to be established only through the author of the document and from the records maintained by the authority concern. The plaintiff has omitted or failed to examine the author of those documents. Under these circumstances, the appellants fail to prove the case and the Substantial Questions of Law are answered as above.

20. In the result, the Second Appeal is dismissed. No costs.

19.12.2016 Index:Yes/No Internet:Yes/No ari To

1. The 8th Additional Judge, City Civil Court, Madras

2.II Assistant Judge, City Civil Court, Madras.

Dr.G.JAYACHANDRAN, J.

ari Judgement made in 19.12.2016 <http://www.judis.nic.in>